

Court No. - 35

Case :- WRIT - C No. - 61290 of 2005

Petitioner :- Dlf Universal Limited Thru' Auth. Signatory

Respondent :- U.P. Power Corporation Ltd. Thru' Chairman & Ors.

Counsel for Petitioner :- Anupam Kumar, T.P. Singh

Counsel for Respondent :- W.H. Khan, A.K. Mishra, M.C. Chaturvedi

Hon'ble Bharati Sapru, J.

Hon'ble Mahesh Chandra Tripathi, J.

List revised.

Learned Counsel for the respondent has not cared to appear.

List this matter in the next cause list showing the name of Sri Chandan Agrawal as counsel for the respondents.

Learned Counsel for the petitioner may give notice in writing to learned Counsel for the respondent that this matter will be listed in the next cause list and obtain a receipt there of.

Order Date :- 2.5.2017

S.P.

Court No. - 35

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Petitioner :- Dlf Universal Limited Thru' Auth. Signatory

Respondent :- U.P. Power Corporation Ltd. Thru' Chairman & Ors.

Counsel for Petitioner :- Anupam Kumar,T.P. Singh

Counsel for Respondent :- W.H. Khan,A.K. Mishra,C.S.C.,M.C.
Chaturvedi

Hon'ble Bharati Sapru,J.

Hon'ble Shashi Kant,J.

List in the next cause list showing the name of Sri Chandan Agarwal as counsel for the respondents.

Order Date :- 11.5.2017

Monika

Court No. - 34

Case :- WRIT - C No. - 61290 of 2005

Petitioner :- Dlf Universal Limited Thru Auth. Signatory

Respondent :- U.P. Power Corporation Ltd. Thru Chairman
And Ors.

Counsel for Petitioner :- Anupam Kumar,T.P. Singh

Counsel for Respondent :- W.H. Khan,A.K.

Mishra,C.S.C.,Chandan Agarwal,M.C. Chaturvedi,Suresh C.
Dwivedi

Hon'ble Sudhir Agarwal,J.

Hon'ble Rajeev Misra,J.

1. Called in revise. None appeared.
2. Bench Secretary has placed a letter dated 14.08.2019 of High Court Bar Association, Allahabad before us wherein it has been requested that Bar Association has resolved to abstain from judicial work and, therefore, no adverse order be passed in the matters listed today. The copy of aforesaid letter has been circulated under the instruction of Hon'ble the Chief Justice making endorsement "Be circulated".
3. Considering aforesaid request and spirit of endorsement made by Hon'ble the Chief Justice, we are deferring this matter.
4. List in next cause list.

Order Date :- 14.8.2019

Siddhant Sahu

Court No. - 34

Case :- WRIT - C No. - 61290 of 2005

Petitioner :- Dlf Universal Limited Thru Auth. Signatory

Respondent :- U.P. Power Corporation Ltd. Thru Chairman And Ors.

Counsel for Petitioner :- Anupam Kumar,T.P. Singh

Counsel for Respondent :- W.H. Khan,A.K. Mishra,C.S.C.,Chandan Agarwal,M.C. Chaturvedi,Suresh C. Dwivedi

Hon'ble Sudhir Agarwal,J.

Hon'ble Rajeew Misra,J.

1. Heard Mr. Anupam Kumar, learned counsel for petitioner and Mr. Suresh C. Dwivedi, learned counsel for respondents.

2. Present writ petition has been filed seeking a mandamus commanding respondent no.2 to permanently disconnect electricity supply in respect of power connection Nos. 6203-549527, 6203-549528 and Street light connection no. A/SL/4, standing in the name of petitioner. With regard to above, an application was submitted by petitioner on 30th August, 2002 before Executive Engineer, Electricity Distribution Division, U.P. Power Corporation Ltd. Loni, District-Ghaziabad for permanent disconnection of aforesaid electricity connections.

3. Clause 4.14(g) of U.P. Electricity Supply Code 2005 which is in pari-materia with Supply Code 2002 provide as under:

" A consumer may terminate the agreement after giving a notice in the specified format (Annexure 4.7). The notice period shall be 30 days for all consumers. Upon service of the said notice, the licensee shall arrange to take reading, disconnect the supply, remove meter, cable etc., deliver final bill including all arrears upto the date of disconnection within 30 days from the date of said application. Upon payment, the Licensee shall issue receipt with FINAL BILL stamped on it, which shall be treated as No Dues Certificate. "

3. From perusal of application dated 30th August, 2002, it appears that no application in prescribed format was submitted by petitioner for permanent disconnection of power supply. Hence, unless procedure prescribed by statute is

followed, no mandamus as prayed for by petitioner, can be granted.

4. Writ petition is accordingly dismissed with liberty to petitioner to proceed in accordance with law for the purpose of permanent disconnection of power supply before authority concerned.

Order Date :- 1.11.2019

YK